

and so much of section eight of that Act as relates to the method of determining by whom a dog is kept shall apply accordingly.

Short title
and citation.
11 & 12
Geo. 5. c. 22.

4.—(1) This Act may be cited as the Protection of Animals (Cruelty to Dogs) (Scotland) Act, 1934, and the Protection of Animals (Scotland) Act, 1912, the Protection of Animals (Scotland) Act, 1912, Amendment Act, 1921, and this Act may be cited together as the Protection of Animals (Scotland) Acts, 1912 to 1934.

(2) This Act shall extend to Scotland only.

CHAPTER 26.

An Act to make provision with regard to the power to make, and the validity of, directions under paragraph (b) (i) of the proviso to subsection (1) of section one of the Licensing Act, 1921, as respects a part of the year only, and to the power to fix, and the validity of decisions fixing, the permitted hours on week-days where such directions are so made. [22nd June 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Permitted
hours in the
evening
(validity of
directions
and
decisions as
respects
parts of the
year).
11 & 12
Geo 5. c. 42.

1.—(1) The power conferred on the licensing justices for any licensing district outside the metropolis by sub-paragraph (i) of paragraph (b) of the proviso to subsection (1) of section one of the Licensing Act, 1921 (which relates to permitted hours on week-days) to make as respects their district a direction that the said subsection shall have effect as though eight and a half hours were substituted for eight hours, and half-past ten at night were substituted for ten at night, shall include power, where they are satisfied that the special requirements of the district during a part of the year only (being a part consisting of eight consecutive weeks or more) render it desirable, to make such a direction as respects that part of the year only.

(2) Where a direction is made under the power conferred by subsection (1) of this section as respects any licensing district, special permitted hours on week-days may pursuant to the direction be fixed in the district by a decision under subsection (2) of section one of the said Act for the part of the year to which the direction relates.

(3) Where before the date of the passing of this Act such a direction or decision as aforesaid has been made, then, notwithstanding that the direction or decision may before that date have been determined by a court to have been invalidly made, and notwithstanding any order or judgment made or given pursuant to that determination, the direction or decision shall have, and shall be deemed always to have had, the like validity as it would have had if the foregoing provisions of this section had been in force at the time when the direction or decision was made :

Provided that nothing in this subsection shall affect any order made by a court before the date of the passing of this Act as to the costs of proceedings in relation to such a direction or decision as aforesaid, or the incidence of liability for any such costs incurred before that date.

2.—(1) Where at the general annual licensing meeting of any licensing justices last held before the passing of this Act a proposal to make a direction under the said sub-paragraph (i) was considered and negatived, then, on the requisition of a majority of them made within two months after the passing of this Act, the licensing justices shall hold a meeting for the purpose of considering whether such a direction or decision as they are empowered by this Act to make ought to be made, and may at that meeting make such a direction or decision as aforesaid.

*Power of
licensing
justices to
make a
direction or
decision at
a meeting
held on
requisition
within two
months
after passing
of Act.*

(2) In relation to a meeting held under the foregoing subsection in England or Wales, the provisions of the rules made by the Secretary of State under subsection (1) of section twelve of the Licensing Act, 1921, shall have effect as if for references therein to the general annual licensing meeting there had been substituted references to the said meeting, and the clerk shall send notice of the said meeting to the superintendent of police of the district and to each of the licensing justices.

(3) In relation to a meeting held under subsection (1) of this section in Scotland, the Licensing (Scotland) Rules, 1921, shall have effect as if for references therein to the half-yearly meeting in April there had been substituted references to the said meeting, and the clerk shall send notice of the said meeting to the chief constable and to each member of the licensing court.

Short title
and con-
struction.

3.—(1) This Act may be cited as the Licensing (Permitted Hours) Act, 1934.

(2) This Act, as it applies to England and Wales, shall be construed as one with the Licensing Acts, 1910 to 1923, and those Acts and this Act as it so applies may be cited together as the Licensing Acts, 1910 to 1934.

(3) This Act, as it applies to Scotland, shall be construed as one with the Licensing (Scotland) Acts, 1903 to 1923, and those Acts and this Act as it so applies may be cited together as the Licensing (Scotland) Acts, 1903 to 1934.

CHAPTER 27.

An Act to extend to certain other minerals the provisions of Part II of the Mining Industry Act, 1926, relating to the grant of facilities for searching for and working coal.

[28th June 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Power of
Railway and
Canal Com-
mission to
grant
working
facilities in
the case of
certain
minerals.
16 & 17
Geo. 5. c. 28.

1.—(1) Section thirteen of the Mining Industry Act, 1926, which empowers the Railway and Canal Commission, on an application referred to them by the Board of Trade, to grant to the applicant the right to search for or work coal or, as the case may be, the right to work coal freed from existing restrictions and conditions or upon substituted terms and conditions, shall apply also in relation to any mineral to which this Act applies and, accordingly, in subsections (1) to (4) of the